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CASE #	CASE NAME	HEARING NAME
CVME2503507	MCMILLAN VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Unopposed Motion for Attorney's Fees is granted. Opposition was not considered as it was untimely. Attorney's Fees awarded in the reasonable amount of \$20,473.50 and costs of \$730.21.

Civ. Code § 1794(d) provides that if a buyer prevails in an action under the Song-Beverly Consumer Warranty Act, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).) The prevailing buyer must establish entitlement to fees and the reasonableness of the fees claimed. (*Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1110.)

The lodestar method is the fundamental framework for determining a reasonable attorney fee award under California law. (*Reynolds, supra*, 47 Cal.App.5th at 1113–14; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131–32.) The lodestar figure is calculated by multiplying the number of hours reasonably expended by counsel by a reasonable hourly rate. (*Ketchum, supra*, 24 Cal.4th at 1131–32.) The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Grp., Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405.)

A verified time statement is entitled to credence in the absence of a clear indication that the statement is erroneous. (*Horsford v. Bd. of Trustees of Cal. State Univ.* (2005) 132 Cal.App.4th 359, 396.) Once the moving party submits billing records sufficient to document the hours expended and the hourly rates charged, the burden shifts to the party opposing the fee award to point to the specific items challenged, with a sufficient argument and citations to the evidence. (*Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) General assertions that the total time is excessive or that counsel used inefficient staffing do not meet this burden absent identification of specific time entries and supporting evidence or argument. (*Id.*)

“[A]bsent circumstances rendering the award unjust, an attorney fee award should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee.” (*Ketchum, supra*, 24 Cal.4th at 1141; *Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) This includes time reasonably spent preparing the fee motion, reviewing the opposition, and preparing the reply. (*Id.*)

The court finds no basis for a multiplier. The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far

exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138)

The Attorney Fee rate of \$625/hr for a managing partner is reasonable in Riverside County. Associate Counsel is approved at a rate of \$375/hr and Paralegal at a rate of \$150/hr. Therefore, the lodestar is calculated as follows. Ashkan Reza is approved for 20.4 hrs at \$625/hr for a total of \$12,750.00. That amount includes preparation for the present motion. Lauren Warwick is approved for 18.3 hours at \$375.00/hr for a total of \$6,862.50. Milei Bennet is approved for .8 hours at \$150/hr for a total of \$120.00. An additional amount of 7.8 hrs approved at a rate of \$95/hr for paralegal/office legal work for a total of \$741.00. Total Lodestar for Attorney’s Fees is \$20,473.50.